

July 15, 2026

Kassra Tavakoli
Andrew Cheung Architects Inc
1525 W 8th Avenue, Suite 208
Vancouver, BC V6J 1T5

**RE: 3989 Fraser Street, Vancouver, BC
Development permit application number DP-2025-00954**

On behalf of the Director of Planning, your application has been approved to develop a six-storey mixed-use residential building with 22 secured market rental dwelling units on Levels 2-6, and retail on the ground floor all over one level of underground parking and having vehicular access from the lane.

A permit may be issued upon the completion of the revisions and conditions noted below under items 1.0 to 2.5 of this “prior-to permit issuance” letter.

HOW TO RESPOND TO THIS LETTER

1. Write and sign a response letter.

- Explain how you addressed each condition.
- Only changes made pursuant to addressing Prior To conditions are accepted as part of your response. Ensure all changes are clearly identified.
- *Provide a complete response to avoid delays or extra fees.*

2. Ensure relevant documents have digital signatures and seals from registered professionals.

- Review requirements at vancouver.ca/permits-eplan.

3. Upload your response letter and documents.

- Log into your permit account at vancouver.ca/permit-apply.

APPLY FOR BUILDING PERMIT(S)

Apply using the Development and Building Services Centre form at vancouver.ca/contact-dbl

Questions? Contact your Project Coordinator helen.yoon@vancouver.ca

1.0 Prior to the issuance of the Development Permit, revised digital drawings shall be submitted, to the satisfaction of the Director of Planning, clearly indicating:

Urban Design conditions:

- 1.1 design development to consider providing a more appropriately sized residential outdoor amenity space;

Note to Applicant: Refer to High Density Housing for Families with Children Guidelines Section 3.7.

Consider providing additional outdoor amenity space including a children's play area on the rooftop to enhance functionality and improve solar access per standard living, the indoor amenity area at a minimum ratio of 1.85 m² (20 sq. ft.) per dwelling unit is strongly recommended.

Development Review Branch conditions:

- 1.2 provision of a vertical vent space to accommodate future proposed restaurant exhaust from the commercial level;

Note to Applicant: Intent is to allow for a wider range of uses without requiring the retrofitting of exhaust ducting on the outside of the building. All exhausts must be located away from street fronts. All fresh-air intake portals must be located away from driveways and parking or loading areas. Any future ventilation location would require Director of Planning approval and depending on the location of the ventilation, it might not be supported.

- 1.3 compliance with Section 4.1.4.(b)- Required Accessible Parking Spaces of the Parking By-law Section 4;

Note to Applicant: Provide the required two (2) accessible parking spaces in accordance with the minimum requirements. First accessible parking space provided must be a van accessible parking space.

- 1.4 compliance with Section 4.1.7- Number of Small Car Spaces, of the Parking By-law;

Note to Applicant: The number of small car parking spaces on a site may not exceed 25% of the total parking spaces proposed.

- 1.5 provision of details of bicycle rooms, in accordance with Section 6 of the Parking By-law, which demonstrates the following:

- i. provide the required forty-five (45) Class A bicycle spaces;
- ii. provide the required two (2) Class B bicycle spaces;
- iii. provide an electrical outlet for each two (2) Class A bicycle spaces;
- iv. provide required clothing lockers;
- v. number each bicycle space individually;
- vi. illustrate the bicycle space classifications, e.g. vertical, oversized, horizontal, vertical and stacked, etc.;

Note to Applicant: A breakdown of the types and sizes of bicycle spaces has not been provided. Refer to Engineering conditions 1.14 and 1.15.

- 1.6 provision of updated architectural drawings as follow:
- i. existing and proposed grade elevations at major building corners added to the site plan, main floor plan and elevations;
 - ii. provide complete and fully dimensioned setback to both cladding and foundation on site plan;
 - iii. remove any previous void areas proposed from basement plan sheet A.2.1;
 - iv. provide dimensions for all proposed parking and bicycle spaces;

Landscape Review conditions:

- 1.7 design development to enhance the public realm interface;

Note to Applicant: This may include providing seating and other pedestrian amenities and/or visual interest.

- 1.8 provision of a revised landscape plan identifying all proposed replacement trees;

Note to Applicant: Include a plant list identifying tree common names, quantities, and installation sizes/calipers at the time of planting. Replacement trees shall meet the requirements of Schedule D of the Protection of Trees By-law.

Engineering Services conditions:

- 1.9 provision of an updated landscape and site plan to reflect the public realm changes including all the off-site improvements sought for this development permit. Where a design or detail is not available, make note of the improvement on the site and landscape plans. The following items and notes are to be added to the landscape plan:

- i. street improvements, and appropriate transitions, along Fraser St adjacent to the site, including:
 - a. minimum 3.0 m wide broom finish saw-cut concrete sidewalk;
 - b. corner curb ramp;
- ii. provision of street improvements, and appropriate transitions, along E 24th Avenue adjacent to the site, including:
 - a. minimum 2.1 m wide broom finish saw-cut concrete sidewalk;
 - b. corner curb ramp;

- c. standard concrete lane crossing, including curb returns and curb ramps;
 - iii. provision of new or replacement duct banks that meets current City standards;

Note to Applicant: Duct banks are to consist of electrical and communication ducts and cables and connect to existing electrical and communication infrastructure.
 - iv. dimensions for the sidewalks;
- 1.10 updated Parking By-law statistics table(s) noting:
- i. *"Parking, loading, bicycle, and passenger loading shall be provided and designed in compliance with the Parking By-law and the Parking and Loading Design Supplement."*
- 1.11 compliance of parking access, per Parking By-law Section 4 and the Design Supplement, including two -way vehicle flow;
- Note to Applicant:** Layout shall not require vehicles to back up for more than 10 m (32.8 ft.).
- 1.12 compliance of vehicle spaces, per Parking By-law Section 4 and the Design Supplement, including:
- i. minimum 5.0 m (16.4 ft.) width, 5.5 m (18 ft.) length and 2.3 m (7.5 ft.) vertical clearance for van accessible spaces sharing access aisles;
 - ii. minimum 2.6 m (8.5 ft.) width for small spaces adjacent one wall or if column located more than 1.2 m (4 ft.) from either end of the stall;
 - iii. minimum 6.6.m (21.7 ft.) maneuver aisle or provide 2.75.m (9 ft.) stall width with 5.5 m (18 ft.) stall length with absolute minimum 20 ft. maneuver aisle width;
- 1.13 compliance of loading spaces, per the Parking By-law Section 5 and the Design Supplement, to include minimum 1.8 m (5.9 ft.) wide loading/unloading area(s), an overhead door, or an access corridor leading to an entry door for Class B spaces;
- 1.14 compliance to bicycle spaces, per Parking By-law Section 6, including:
- i. maximum 60% vertical and stacked Class A spaces;
 - ii. minimum 10% bike lockers;
- 1.15 provision of general revisions to the architectural plans:
- i. all types of parking dimensioned on the drawings;
 - ii. identification of columns in the parking layouts;

- iii. additional section drawings showing elevations and minimum vertical clearances for parking levels, loading bays, ramps, and to the underside of raised security gates considering mechanical projections and built obstructions;

2.0 **Condition(s) to be met prior to the issuance of the Development Permit:**

Development Review Branch conditions:

- 2.1 Written confirmation is to be submitted that the notification sign on the site has/have been removed.

Engineering Services conditions:

- 2.2 Provision of a Services Agreement to detail the on-site and off-site works and services necessary or incidental to the servicing of the site (collectively called the "Services") such that they are designed, constructed and installed at no cost to the City and all necessary street dedications and rights of way for the services are provided.
 - i. Street improvements, and appropriate transitions, along Fraser St adjacent to the site, including:
 - a. minimum 3.0 m wide broom finish saw-cut concrete sidewalk;
 - b. corner curb ramp;
 - ii. Street improvements, and appropriate transitions, along E 24th Avenue adjacent to the site, including:
 - a. minimum 2.1 wide broom finish saw-cut concrete sidewalk;
 - b. corner curb ramp;
 - c. standard concrete lane crossing, including curb returns and curb ramps; and
 - iii. Provision of new or replacement duct banks that meet current City standards.

Note to Applicant: For general Latecomer Policy information refer to the website at <https://vancouver.ca/home-property-development/latecomer-policy.aspx#redirect>

The preparation of this legal agreement includes the requirement for collection of a fee by Development, Buildings, and Licensing for service as approved in the following Council Report: <https://council.vancouver.ca/20231003/documents/r2.pdf> and will be due prior to issuance of the Development Permit.

- 2.3 Provision of a letter of credit or such other form of alternative security that may be acceptable to the City in its sole discretion as per the Services Agreement to

be provided prior to development permit clearance.

Note to Applicant: A letter of credit shall follow the City of Vancouver Treasury corporate policy <https://policy.vancouver.ca/ADMIN032.pdf> (vancouver.ca). A draft is to be submitted to Engineering prior to sending any finalized document.

- 2.4 Provision of a Canopy Application for any/all portions of the proposed canopy that encroach over the property line as shown on E 24th Ave to be included on the next submission with the following information:

- i. Demountable detail of the proposed canopy; and

Note to Applicant: Welds are not acceptable.

- ii. the following notations:

a. *“canopy to be fully demountable and conform with VBBL 1.8.8.”;*
and

b. *“canopy to drain to the buildings internal storm system”.*

Housing Review conditions:

- 2.5 Make arrangements to the satisfaction of the General Manager of Planning, Urban Design and Sustainability and the Director of Legal Services to enter into a Housing Agreement and a Section 219 covenant securing all residential units as for-profit affordable rental housing units, excluding Seniors Supportive or Independent Living Housing, pursuant to Section 3.1A of the Vancouver Development Cost Levy By-law for a term equal to the longer of 60 years and life of the building, subject to the following additional conditions:

- i. A no separate-sales covenant.
- ii. A no stratification covenant.
- iii. That none of the units are to be rented for less than 90 consecutive days at a time.
- iv. That the average initial starting monthly rents for each unit type will for initial occupancy not exceed the rents outlined by Section 3.1.A (e) of the Vancouver Development cost Levy-By Law.
- v. That a rent roll be provided, prior to issuance of an occupancy permit, to the satisfaction of General Manager of Planning, Urban Design and Sustainability and the Director of Legal Service.
- vi. Such other terms and conditions as the General Manager of Planning, Urban Design and Sustainability and the Director of Legal Services may in their sole discretion require.

Note to Applicant: This condition will be secured by a Housing Agreement to be entered into the City by By-law enacted pursuant to Section 565.2 of the Vancouver Charter.

3.0 Development Permit Terms:

- 3.1 All approved off-street vehicle parking, loading, and unloading spaces, and bicycle parking spaces shall be provided in accordance with the relevant requirements of the Parking By-law **prior to the issuance of any required occupancy permit**, or any use or occupancy of the proposed development not requiring an occupancy permit, and thereafter permanently maintained in good condition.
- 3.2 All landscaping and treatment of the open portions of the site shall be completed in accordance with the approved drawings **prior to the issuance of any required occupancy permit**, or any use or occupancy of the proposed development not requiring an occupancy permit, and thereafter permanently maintained in good condition.

Note to Applicant: In cases where it is not practical, due to adverse weather conditions or other mitigating factors, to complete the landscaping prior to occupancy of a building, the City will accept an Irrevocable Letter of Credit (amount to be determined by the City) as a guarantee for completion of the work by an agreed upon date.

- 3.3 In accordance with Protection of Trees By-law Number 9958, the removal and replacement of trees is permitted only as indicated on the approved Development Permit drawings.
- 3.4 This Development Permit is valid for a period of 12 months from the date of issuance - unless otherwise validated by a Building Permit.
- 3.5 Provision of construction details to determine ability to meet municipal design standards for shotcrete removal (street restoration manual section 02596 and Encroachment By-law (#4243 section 3A) and access around existing and future utilities adjacent to your site.

Note to Applicant: Detailed confirmations of these commitments will be sought at the building permit stage with final design achievements certified and confirmed with survey and photographic evidence of removals and protection of adjacent utilities prior to building occupancy.

- 3.6 Construction dewatering is a Water Use Purpose under the Water Sustainability Act requiring a provincial Approval or License.

Note to Applicant: Applications for provincial Approvals or Licenses can be completed online. The application will be received and accepted into the province's online system, and the provincial authorizations team strives for 140 days to get the approval to the applicant. The approval holder must be able to produce their approval on site so that it may be shown to a government official upon request.

4.0 Notes to Applicant:

- 4.1 It should be noted that your Development Permit will be issued when you have complied with all the above conditions. However, if these conditions have not

been complied with **on, or before October 13, 2026**, this Development Application may stand refused.

- 4.2 Provide the Class B DCL waiver request form confirming the DCL waiver prior to issuance of a building permit.
- 4.3 Provide a final Class B DCL waiver request form with rent roll prior to issuance of an Occupancy Permit.
- 4.4 Provision of written confirmation that the proposed mix of market rental units include 14 one-bedroom units (64%), 7 two-bedroom units (32%), and 1 three-bedroom units (4%) will be maintained.

Note to applicant: Any changes in the unit mix may only be varied under the discretion of the Director of Planning or Development Permit Board provided that it does not go lower than 35% of dwelling units with two or more bedrooms, as per the Rental Housing Stock Official Development Plan.

- 4.5 A Key Plan shall be submitted by the applicant and approved by the City prior to any third-party utility drawing submissions. It is highly recommended that the applicant submit a Key Plan to the City for review as part of the Building Permit application. Third party utility service drawings will not be reviewed by the City until the Key Plan is defined and achieves the following objectives:
 - i. the Key Plan shall follow the specifications in the City of Vancouver Key Plan Process and Requirements Bulletin <https://vancouver.ca/files/cov/Key%20Plan%20Process%20and%20Requirements.pdf>; and
 - ii. third-party service lines to the development are to be shown on the plan (e.g., BC Hydro, Telus, Shaw, etc.) and the applicant is to provide documented acceptance from the third-party utilities prior to submitting to the City.

Note to Applicant: Use of street for temporary power (e.g., temporary pole, pole mounted transformer or ducting) is to be coordinated with the city well in advanced of construction. Requests will be reviewed on a case-by-case basis with justification provided substantiating need of street space against other alternatives. If street use for temporary power is not approved, alternate means of providing power will need to be proposed. An electrical permit will be required.

For questions on this requirement, contact the Utilities Management Branch at umb@vancouver.ca.

- 4.6 All impacted utility companies shall be contacted and notified of the following requirements:
 - i. All utility services (e.g., BC Hydro, Telus, and Rogers) shall be underground; and
 - ii. all required electrical equipment (e.g., BC Hydro, Telus, and Rogers) shall be underground.

Note to Applicant: The review of third-party utility service drawings (e.g., BC Hydro, Telus, and Shaw) will not be initiated until all drawings have been received by the Utilities Management Branch (UMB). For questions on this requirement, please contact UMB at umb@vancouver.ca.

- 4.7 A new Development Application will be required for any significant changes. This approval is subject to any change in the Zoning and Development By-law or other regulations affecting the development that occurs before the permit is issuable. No permit that contravenes the by-law or regulations can be issued.
- 4.8 If this application necessitates the demolition of existing residential rental, per Section 10.14.2 and except as set out in section 10.14.3, where development necessitates the demolition of existing residential rental accommodation, no development permit shall be issued for the demolition unless and until a development permit for the new development has been issued.

Note to Applicant: The requirements listed above may be varied subject to the provisions outlined under Section 10.14.4.

- 4.9 If this Development Application included a written notification of neighbouring property owners or other interested parties, a copy of this letter will be sent to all respondents advising them of the decision.
- 4.10 The Canadian Electrical Code regulates high voltage overhead conductor clearances from structures and dielectric liquid-filled transformer clearances from combustible building surfaces, doors, windows, and ventilation openings. All structures must have a horizontal distance of at least 3 m from existing BC Hydro high voltage overhead conductors. Combustible building surfaces, windows, doors, and ventilation openings must be located at least 6 m from dielectric liquid-filled, pole-mounted BC Hydro transformers, unless an acceptable non-combustible barrier is constructed between these transformers and combustible building surfaces, doors, windows, or ventilation openings.

Yours truly,



Helen Yoon
Helen.yoon@vancouver.ca
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